Postal and Telecommunications (Ownership Requirements for Licences) Regulations, 2026

IT is hereby notified that the Minister of Information Communication Technology, Postal and Courier Services, in terms of section 99 of the Postal and Telecommunications Act [*Chapter 12:05*], after consultation with the Authority, has made the following regulations:—

Title

1. These regulations may be cited as the Postal and Telecommunications (Ownership Requirements for Licences) Regulations, 2026.

Interpretation

2. In these regulations—

"citizen of Zimbabwe" has the meaning assigned to it in the Constitution of Zimbabwe;

"foreigner" means a person who is not a citizen of Zimbabwe;

"licence" means a licence issued under Part VI of the Act;

"shareholder" means any person holding shares in a company applying for or holding a licence.

Ownership requirements for licence applicants

3. (1) Subject to section 4, the Authority shall not issue a licence to an applicant unless at least seventy-five *per centum* of the ownership of the applicant is held by—

(a) citizens of Zimbabwe; or

(b) companies, trusts or other entities which are themselves at least seventy-five *per centum* owned by citizens of Zimbabwe.

(2) For the avoidance of doubt, no applicant in which a foreigner holds more than twenty-five *per centum* of the ownership shall be issued with a licence, unless exempted under section 4.

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Conditional participation by foreigners

4. (1) Notwithstanding section 3, the Authority may recommend to the Minister that a licence be issued to an applicant in which a foreigner holds more than twenty-five *per centum* ownership if the applicant—

(a) has obtained a permit or exemption from the Minister responsible for industry and commerce in terms of the Indigenisation and Economic Empowerment (Foreign Participation in Reserved Sectors) Regulations, 2025; and

(b) demonstrates a significant economic contribution to Zimbabwe; and

(c) submits a business plan approved by the Minister responsible for industry and commerce, demonstrating measurable commitments to—

(i) skills transfer to citizens of Zimbabwe;

(ii) technology transfer;

(iii) sustainable value-chain development utilising local inputs where available; and

(iv) corporate social investment in telecommunications infrastructure development in under-serviced areas.

(2) An application under subsection (1) shall be made to the Authority in the manner and form determined by the Authority, and the Authority shall submit the application together with its recommendations to the Minister within thirty days of receipt.

Obligations of existing licensees

5. (1) Any person who, immediately before the commencement of these regulations, held a licence and whose ownership structure does not comply with section 3 shall, within ninety days of commencement, submit to the Authority a regularisation plan demonstrating how they will achieve compliance within—

(a) three years from the date of commencement; or

(b) such a longer period as the Minister may approve on good cause shown.

(2) A regularisation plan submitted under subsection (1) shall include—

(a) a clear timeline for divestment of shareholding to achieve compliance;

(b) annual targets for reduction of foreign ownership; and

(c) sworn affidavits disclosing all beneficial owners of the licensee.

Duty to inform Authority of changes in ownership

6. (1) Every licensee shall notify the Authority in writing of any proposed change in its ownership structure at least thirty days before implementing such change.

(2) The Authority may, within thirty days of receiving notification under subsection (1), object to the proposed change if it would result in the licensee failing to comply with these regulations.

(3) No change in ownership shall be implemented while an objection by the Authority remains in force.